



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 28, 2024

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202208304 (Incident Date: December 3, 2022) regarding Police Officer Michael Espenberg, Tax No. 948938 (DADS No. 2024-30071)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in connection with CCRB Case No. 202208304, pertaining to Police Officer Michael Espenberg, and has determined that disciplinary action is not warranted in connection with the substantiated allegations.

In this case, Police Officer Espenberg was alleged to have used excessive force against an individual. After careful review of the body worn footage provided in this case, it appears that numerous officers properly directed the individual to stop recording in the police facility, as it was prohibited by Department policy. The individual, however, did not feel that despite posted signs and being told that recording was prohibited, that he needed to stop. He continued to protest and disregard numerous requests to stop recording. By his own admission, the individual stated in his CCRB interview that he was holding his phone up in his hand and that the prohibition against recording was only a policy and not a law. Since the phone was held in his hand in the direction of the officers, it was reasonable to perceive he was recording and thus, Police Officer Espenberg removed him from the facility. Police Officer Espenberg was then seen on body worn camera physically escorting the individual out of the precinct. Once he was outside, and moved back away from the entrance, the individual turned and came back at Police Officer Espenberg who told him in sum and substance that it was time to get out because he was trespassing and to go home. At that time, the individual came within approximately two feet of Police Espenberg who pushed him back in order to create space.

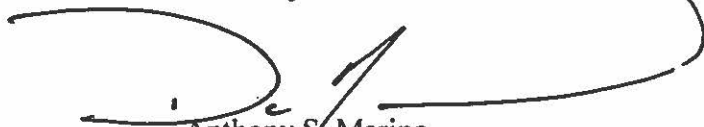
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It is important to note that at the time the individual came back at Police Officer Espenberg, the only other officer in the vicinity was behind Police Officer Espenberg and holding the door. Despite being pushed again, the individual came back at Police Officer Espenberg a second time, this time getting within a foot of him as he challenged Police Officer Espenberg to push him again. In response to coming within a foot of him, Police Officer Espenberg pushed the individual back again, while telling him to "move" and "go." The individual came back within a foot of Police Officer Espenberg for a third time, this time challenging the officer to "make me go." Police Officer Espenberg pushed the advancing individual back again, and told him to go home. Immediately after, Police Officer Espenberg turns away and there was no further physical contact between Police Officer Espenberg and the individual. Since the individual kept advancing within a foot or two of Police Officer Espenberg, while staring down at him, it was reasonable for Police Officer Espenberg to create space in the event the individual decided to fight. The individual's comments, actions, and body language all gave rise to a reasonable inference that he may attempt to fight. In fact, after Police Officer Espenberg was no longer interacting with him, the individual removed his jacket and returned to continue to challenge other officers to move him.

Given the totality of the circumstances, the Police Commissioner directs that no disciplinary action be imposed against Police Officer Espenberg for the allegation of physical force.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office